

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Russo	Team: Squad #10	CCRB Case #: 202101550	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 03/03/2021 2:57 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/3/2022	Precinct: 110
Date/Time CV Reported Mon, 03/08/2021 5:37 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 03/08/2021 5:37 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Sanchez	23298	948129	110 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT John Lewis	03673	956045	110 PCT
2. POM Peter Devincenzi	15360	952669	110 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Sanchez	Discourtesy: Police Officer Christopher Sanchez acted discourteously toward § 87(2)(b)	A . Exonerated
B . POM Christophe Sanchez	Abuse: Police Officer Christophe Sanchez interfered with § 87(2)(b)'s use of a recording device.	B . Exonerated
C . POM Christophe Sanchez	Abuse: Police Officer Christopher Sanchez failed to obtain language interpretation services for § 87(2)(b)	C . Unfounded

Case Summary

On March 8, 2021, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System.

On March 3, 2021, at approximately 2:57 p.m., § 87(2)(b) a § 87(2)(b) sales representative called 911 for police assistance after she was assaulted by a tenant of § 87(2)(b) in Queens. Police Officer Christopher Sanchez, Police Officer Peter Devincenzi, and Sergeant John Lewis, all of the 110th Precinct—responded to the location. When the officers approached § 87(2)(b) she was using her cellphone to have a video call with her supervisor, who wished to speak with the officers. However, PO Sanchez “snatched” the cellphone from § 87(2)(b) hand and disconnected the video call (**Allegation A: Discourtesy-Action, exonerated**) (**Allegation B: Abuse of Authority-Interference with Recording Device, exonerated**). While describing the assault that led to the 911 call, § 87(2)(b) asked PO Sanchez if he spoke Spanish. PO Sanchez informed § 87(2)(b) that he did not speak Spanish, yet he did not take any steps to obtain language services for her (**Allegation C Abuse of Authority-Failure to Obtain Language Services, unfounded**).

There were no arrests made or summons issued as a result of this incident.

The investigation obtained Body-Worn Camera footage from PO Devincenzi (BR01), PO Sanchez (BR02), and Sgt. Lewis (BR03).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Christopher Sanchez acted discourteously toward

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Christopher Sanchez interfered with

§ 87(2)(b)

s use of a recording device.

PO Sanchez’s BWC (BR02) shows that, at the 1:12 mark, PO Sanchez approaches § 87(2)(b) and asks her to put her cellphone down so that they could speak. § 87(2)(b) informs him that she has her supervisor on the cellphone. PO Sanchez informs her that he needs to speak with her, asking her to put the cellphone down again. § 87(2)(b) places her cellphone in her breast pocket when her supervisor makes a statement. PO Sanchez tells § 87(2)(b) to hang up the phone call. The supervisor asks to speak to the police, after which PO Sanchez reiterates to hang up the phone call. PO Sanchez tells § 87(2)(b) to hang up the cellphone twice more. § 87(2)(b) continues speaking with her supervisor, without complying with PO Sanchez’s requests to disconnect the call. At the 1:53 mark, § 87(2)(b) leans the phone toward PO Sanchez, and he calmly takes the cell phone from her hand, without force or aggression, after which he disconnects her video call. PO Sanchez holds on to the cellphone and § 87(2)(b) demands that it be returned to her. PO Sanchez informs her that he will return the cellphone when they are finished speaking. § 87(2)(b) tells PO Sanchez that he “cannot do that”, which he refutes by stating that she was being uncooperative with the officers’ investigation into the incident. At the 3:36 mark, PO Sanchez returns § 87(2)(b) s cellphone, while she is speaking with Sgt. Lewis.

§ 87(2)(b) (BR04) testified that when PO Sanchez and Sgt. Lewis approached her, she told them that her supervisor—who she had on the cellphone—wanted to speak with the officers. PO Sanchez snatched the cellphone out of § 87(2)(b) s hand and hung up the cellphone call. PO Sanchez held onto the cellphone until the end of the incident.

PO Sanchez (BR05) testified that when he first approached § 87(2)(b) he had difficulty speaking with her because she was on a video call with someone. § 87(2)(b) conversation with this individual interfered with his ability to interview her about the incident. § 87(2)(b) offered her cellphone to PO Sanchez multiple times, asking him to speak with the individual she had on the video call. Eventually, PO Sanchez accepted the cellphone on the last time § 87(2)(b) offered him the cellphone, after which he disconnected the call. PO Sanchez did not remember if he asked § 87(2)(b) to hang up the call herself before he did so. He did not independently recall § 87(2)(b)

protesting his possession of her cellphone, despite the presentation of his own BWC footage (BR02). PO Sanchez returned § 87(2)(b) cellphone after he successfully obtained her account of what happened before the officers' arrival.

EVENT Information § 87(2)(b) (BR10) notes that the male involved in this incident—§ 87(2)(b)—called 911 stating that a female—§ 87(2)(b)—was saying that she worked for § 87(2)(b) and was trying to get into his apartment. Shortly after, § 87(2)(b) called 911, where she and § 87(2)(b) are captured arguing. The event type is categorized as dispute.

The NYPD is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by threatening every citizen with compassion, courtesy, professionalism, and respect. NYPD Patrol Guide Procedure 200-02 (BR06).

Individuals have a right to lawfully observe and/or record police activity, including but not limited to detentions, searches, arrests, or use of force. This right can be limited for reasons such as the safety of the officers or other members of the public, or when a violation of law is committed by the individual observing/recording. NYPD Administrative Guide 304-21 (BR11).

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegations A and B** be closed as **exonerated**.

Allegation (C) Abuse of Authority: Police Officer Christopher Sanchez failed to obtain language interpretation services for § 87(2)(b)

PO Sanchez's BWC (BR02), which documents the entire incident, shows that, at the 1:14 mark, PO Sanchez was the only officers speaking with § 87(2)(b) when the incident began. The footage does not capture § 87(2)(b) requesting language services or speaking any language other than English. The footage only captures § 87(2)(b) conversing with the officers in English.

§ 87(2)(b) (BR04) testified that she asked PO Sanchez and Sgt. Lewis if they spoke Spanish when they initially approached her, to which they responded that they did not.

PO Sanchez and Sgt. Lewis (BR05, BR07) both testified that § 87(2)(b) did not request language services, nor did she ask them if they spoke Spanish. There was no need to obtain language services given that § 87(2)(b) communicated with them in English and the officers had no issues understanding her.

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegation C** be closed as **unfounded**.

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR08).
- PO Sanchez has been a member of service for 12 years. He has been the subject to 17 other

CCRB complaints and 51 allegations, two of which have been substantiated (See officer history):

- 201800652 involves substantiated allegations of physical force. The CCRB recommended Command Discipline B. The NYPD's disposition and penalty are not noted.
- 201800652 involves substantiated allegations of a search of a person. The CCRB recommended Command Discipline B. The NYPD's disposition and penalty are not noted.
- § 87(2)(g) [REDACTED].

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- On June 7, 2021, the investigation submitted a notice of claim inquiry request to FOIL through the online portal. This report will be updated upon receipt of a response.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

Squad No.: 11

Investigator:  Inv. Jessica Russo 09/14/2021
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 06/10/21
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date